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LINE 2

25-CIV-02450

VERONICA NAVARRO VS. STEPHEN PRESTON MEALIFFE, ET AL

VERONICA NAVARRO
STEPHEN PRESTON MEALIFFE

STEPHEN R. JAFFE

DEFENDANT ZOOX, INC.'S MOTION TO ENFORCE SETTLEMENT

TENTATIVE RULING:

The Motion to Enforce Settlement by Defendant Zook, Inc. ("Defendant") is DENIED WITHOUT PREJUDICE.

Plaintiff Veronica Navarro ("Plaintiff") brought an action against Defendant, her former employer. In May 2025, the parties signed a Confidential Settlement and General Release Agreement. October 17, 2025 Compendium of Evidence ("Compendium") Exhs. 18 and 19. This settlement agreement includes a procedure for remediation of a Seagate hard drive that was owned by Plaintiff. *Id.* ¶ 2.1.2. Upon completion of the remediation, the parties agreed they would sign a Mutual General Release. *Id.* ¶ 2.2, and Exh. B.

Defendant brings this Motion seeking to enforce the settlement agreement under Code of Civil Procedure section 664.6.

On a motion under Code of Civil Procedure section 664.6, the court must determine whether the parties entered into a valid and binding settlement. *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182. "A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms." *Id.* The court may consider the parties' declarations and other evidence in deciding what terms the parties agreed to. *Id.* However, while the court may receive evidence, determine disputed facts and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement as opposed to deciding what terms the parties themselves agreed. *Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.

Despite Plaintiff and Zook signing the Confidential Settlement and General Release Agreement, Plaintiff argues that no settlement agreement ever existed and that she only indicated her agreement to participate in the remediation procedure set forth in Section 2.1.2. However, Plaintiff's interpretation is contradicted by the plain language of the Confidential Settlement and General Release Agreement ("Agreement"). The Agreement states that the parties desire to resolve any and all disputes arising from Plaintiff's employment. Compendium Exhs. 18 and 19. The agreement also includes a release of claims. *Id.* The agreement states that it shall become effective on the eighth calendar day after the last party executes the agreement if Plaintiff does not timely revoke the agreement as set forth in section 18.7, which provides for revocation from seven days following execution of the agreement. *Id.* Plaintiff executed the agreement on May 22, 2025. *Id.* Ex. 18. Plaintiff has not shown that she revoked the agreement within seven days of executing it.

Furthermore, Plaintiff is clearly wrong—the remediation procedure was not a condition precedent to the settlement agreement becoming effective. Civil Code, § 1436. Instead, the agreement provides that upon completion of the remediation, the parties agreed to sign and deliver the Mutual General Release and

Zoox would make a cash payment to Plaintiff upon compliance with the agreement and execution and delivery of the Mutual General Release. Compendium Exhs. 18 and 19. “If the Mutual General Release does not become final and effective for any reason, the Company’s obligation to provide the Mutual General Release Consideration shall cease, and Employee shall have no right or entitlement to the Mutual General Release Consideration.” *Id.* Accordingly, Plaintiff’s argument that the agreement is only binding upon completion of the remediation is not supported by the text of the agreement.

Accordingly, the court finds that the parties entered into a binding settlement agreement.

In this Motion, Zoox asks the court to enter an order that (among other things): Setec permanently delete all data from the Seagate Drive that was not identified by Navarro as, and confirmed by Zoox’s representative to be, “Personal Data” or “Authorized Data” (as those terms are in defined in the Settlement Agreement) on June 3, 2025 and return the Seagate Drive to Navarro within five calendar days of the order granting the Motion. It then asks the Court to make Orders enforcing terms that are to follow the completion of the remediation process.

The agreement sets forth a procedure that the parties agreed to related to the remediation of the Seagate drive, including that “the Neutral shall return the Seagate Drive to Employee.” At the remediation, an alternative approach apparently took place in which Plaintiff’s personal files were copied onto a new external hard drive. It appears that the Seagate drive did not get returned to Plaintiff as provided for in the agreement. While Zoox may very well have been acting in good faith in an attempt to work with Plaintiff and further negotiate return of the drive (and Plaintiff may have waived any objection to the alternate procedure and any delay effected by her agreement), nevertheless Zoox has not demonstrated to the Court’s satisfaction that the remediation is complete as set forth in the agreement entitling it at this time to an order enforcing the agreement by requiring Plaintiff to sign the Mutual General Release and dismiss this action. While the Court hopes it becomes unnecessary, it would entertain a subsequent motion to enforce once the remediation process is complete pursuant to the parties agreement or if Zoox can establish that Plaintiff is in breach of her obligations in relation to the remediation process.

In the same vein, to the extent that Zoox also seeks an order for Setec to permanently delete all data from the Seagate Drive that was not identified by Navarro as, and confirmed by Zoox’s representative to be, “Personal Data” or “Authorized Data” (as those terms are in defined in the Settlement Agreement) on June 3, 2025 and return the Seagate drive to Plaintiff, Zoox has not established why such an order is necessary when this language is already part of the settlement agreement. Such actions also pertain to Setec and not Plaintiff and Setec is not a party to this action or obviously subject to the Court’s jurisdiction.

Based on the above, the court does not need to address Plaintiff’s assertion of rescission of the settlement agreement at this time, but based on the submissions to date it has serious doubts about Plaintiff’s ability to establish grounds of rescission for multiple reasons. The Court encourages the parties to work together to effectuate the terms of the settlement agreement and avoid additional motion practice.

Zoox’s Evidentiary Objections are ruled on as follows:

Jaffe Declaration

Nos. 1, 2, 4, 10: SUSTAINED on ground(s) raised by Zoox.

Nos. 3, 5-9, 11-18: OVERRULED.

Plaintiff's Declaration

No. 1, 3, 15, 16, 20, 21: SUSTAINED on ground(s) raised by Zoox.

Nos. 2, 4-11, 12, 13, 17, 19, 22-27: OVERRULED.

No. 14: SUSTAINED to "illegal extortion" as legal conclusion and improper opinion testimony, and opinions regarding Zoox's motivations as speculation and OVERRULED to remainder.

Nos. 18: SUSTAINED based on Hearsay to the extent that the out-of-court statements are being offered for their truth.

No. 28: SUSTAINED to "No settlement agreement between me and Zoox has ever existed" as legal conclusion and improper opinion testimony and OVERRULED to remainder.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 3

25-CIV-04686

STEPHANIE LIM VS. ELEXUM, ET AL

STEPHANIE LIM
ELEXUM

CHRIS QUATTROCIOCCHIE
THOMAS J. WALSH

MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Before the Court is Plaintiff Stephanie Lim’s unopposed motion for an order granting leave to file a First Amended Complaint (“FAC”).

Initially, the Court observes that Plaintiff’s notice of hearing provides the improper address for the hearing because the matter was reassigned to the Honorable David A. Silberman, Department 11, on May 11, 2026. Department 11 is not located in Redwood City as the notice states, but instead at the Central Branch Courthouse, Courtroom G, at 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, rule 3.1110 (the Notice “must specify” the location of the hearing). While it remained Plaintiff’s obligation to correct the notice, it is both understandable and harmless and the error is waived.

Next, the Court notes Plaintiff’s motion includes three exhibits, but they are not properly bookmarked. That is, “electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” Cal. Rules of Court, rule 3.1110(f)(4); *see also* San Mateo County Superior Court, L.R. 3.3 (“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”). Additionally, the motion contains two Exhibit A’s, both the amended complaint and what appears to be one of two exhibits to the complaint (although oddly neither are referenced in the complaint). For this reason, electronic bookmarking is especially useful to avoid either uneconomic use of the Court’s time in the best case, or inaccuracy at the worst.

In any event, the instant motion requests leave to eliminate the fourth cause of action for breach of contract raised in plaintiff’s complaint filed June 20, 2025. The motion is unopposed and plaintiff asserts that Defendant Elexum has no objection to the filing of the attached First Amended Complaint (the Court noted that she is silent as to Apple and fails to provide any admissible evidence in support of the assertion, regardless).

Nevertheless, motions for leave to amend the pleadings are left to the sound discretion of the trial court judge. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” Code Civ. Proc. § 473 (a)(1); Code Civ. Proc. § 576. Under code section 576 a “judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” *McMillin v. Eare* (2021) 70 Cal.App.5th 893, 909 (*italics in original omitted*).

Accordingly, the Motion is GRANTED. Plaintiff shall file the FAC within 10 days of the date of this Order.
